

TENTATIVE RULING FOR CIVSB2225806
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Brown v. FCS US LLC et al

Motion: Compel Compliance with Discovery Order (filed May 14, 2026)

Movant: Justin L. Brown (“Plaintiff”/”Brown”))

Respondent: FCA US LLC (“Defendant”/”FCA”)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

Plaintiff’s attempts to get the deposition of a PMQ continue, despite this court issuing not less than three orders so far in this case. On January 28, 2025, this Court ordered Defendant “to produce another Person Most Qualified witness on Matters of Examination Nos. 9-13, as well as all documents responsive to Requests for Production of Document Nos. 4, 17, 19, 20, 23, 24, and 36, on or before April 1, 2025. On July 10, 2025, this Court found Defendant was not in compliance with the portion of the order requiring it to produce another PMQ on Matters of Examination Nos. 9-13 on or before April 1, 2025. The Court ordered production of such PMQ within 30 days, to be extended only via written stipulation of counsel. The Court deemed the motion moot as to the request for production of documents. The Court granted the request for sanctions but reserved the total amount and the right to impose further non-monetary sanctions. The Court set an order to show cause regarding compliance hearing for September 16, 2025.

On September 16, 2025, the Court noted the deposition previously ordered did not take place. Defense counsel represented one of the witnesses had an emergency and requested to reschedule. Plaintiff’s counsel stated she was not given enough time to reschedule and was not informed what type of emergency the witness had. The Court found Defendant failed to comply with the order and issued \$2,925 in sanctions due within 15 days payable to Plaintiff’s counsel. The Court further ordered the deposition to be held within 30 days, and noted sanctions would increase if the deposition did not proceed as ordered.

On May 14, 2026, Plaintiff filed the instant motion to compel compliance with the January 28, 2025, discovery order, contending the deposition still has not been held. Plaintiff further seeks monetary sanctions and issue/evidence or terminating sanctions. Defendant opposes.

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ANALYSIS

The Court may impose specified sanctions, including monetary, evidentiary, terminating, and other sanctions, against any party “engaging in conduct that is a misuse of the discovery process.” (Code Civ. Proc., §2023.030.) Disobedience of a court order to provide discovery constitutes a misuse of the discovery process. (Code Civ. Proc., §2023.010, subd. (g).) The Court has repeatedly ordered Defendant to produce their PMQ on the categories addressed in the motion heard back in January 2025, and Defendant still has not done so. The Court’s prior order was clear and yet Defendant continues to fail to produce a qualified witness for the deposition.

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions ‘should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’” [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation and fn. omitted.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) “[D]ismissal of an action as a discovery sanction is a drastic remedy which should be used sparingly.” (*Trail v. Cornwell* (1984) 161 Cal.App.3d 477, 488-489.) There are constitutional due process limitations on the power of courts, even in aid of their own valid processes, to order discovery sanctions that deprive a party of his opportunity for a hearing on the merits of his claim. (*Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 614, citing *Midwife v. Bernal* (1988) 203 Cal.App.3d 57, 64.)

This Court has already issued three separate orders to obtain Defendant’s compliance with a deposition of a PMQ. This Court also warned Defendant that sanctions would increase if they continue to violate the court order. Defendant pattern of conduct shows that they are willfully failing to comply with a valid court order. The totality of the circumstances here supports an increase in sanctions is warranted.

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RULING

1. Plaintiff's motion is GRANTED.

- a. On July 22, 2026, at time of oral argument the court will require counsel to provide a date certain for the deposition to take place. The deposition date issued by this court cannot be changed without a court order.
- b. The Court order Defendant and their attorneys of record CLARK HILL LLP to pay within 15 days a discovery sanction of \$4500.
- c. As and for additional sanctions, the Court now makes evidentiary sanctions against Defendant, precluding it from introducing any evidence (whether in the form of witness testimony, rebuttal evidence, rehabilitation, or documents not otherwise produced in this matter) of its ability to repair the Electrical Defect and Infotainment System Defect; that the Electrical Defect and Infotainment System Defect are not widespread; that Defendant knows how to repair the Electrical Defect and Infotainment System Defect; that the Technical Service Bulletins ("TSBs") issued by Defendant to address the Electrical Defect and Infotainment System Defect are for "customer satisfaction" only; that the repair procedures issued by Defendant to date can fully repair the Electrical Defect and Infotainment System Defect; and that the Defects are not a substantial impairment to the Subject Vehicle's use, value, and/or safety.
- d. The Court will reserve the right to increase sanctions if the Defendant fails to produce a PMQ who is ready and prepared to testify at deposition.

2. Movant to give Notice.